THE SHERIFF OF ZIMBABWE
versus
THE TRUSTEES FOR THE TIME BEING OF THE NGEPI TRUST
and
ROLLEX PVT LTD
and
SUN EXCHANGE (PVT) LTD
and
FIRST CAPITAL BANK LIMITED

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE: 22 October 2024, 28 November 2024 & 6 March 2025

Opposed Interpleader Application

VR Muzambi, for the applicant
J Chirambwe, for the claimants
B Mahuni, for the judgment creditor

MUSITHU J: This is an interpleader application which was filed in terms of r 63 of the High Court Rules, 2021. The background to the matter is that the judgment creditor, First Capital Bank Ltd, obtained judgment against an entity called Nhimbe Fresh Exports (Pvt) Ltd and Edwin Moyo in HCHC 184/23. The judgment was in the sum of US$157, 996.82, together with interest thereon at the rate of 17% per annum calculated from 2 March 2023, with such interest being compounded with monthly interest, to the date of full payment. There was also an order of costs of suit to be paid by the judgment debtors jointly and severally, with the one paying the other being absolved.

Armed with that judgment, the judgment creditor instructed the applicant to attach and take into execution the judgment debtors' movable property, which the applicant proceeded to do so. The claimants however lay claim to the same property which comprises industrial scale agricultural processing plants. Three claimants are involved. The first claimant is The Trustees for the Time Being of the Ngepi Trust. The second claimant is Rollex Pvt Limited, while the third claimant is Sun Exchange (Pvt) Ltd. The claimants initially filed interpleader affidavits

of their claims as self-actors. At the hearing of the matter, the claimants had engaged counsel who sought a postponement of the matter to file proper notices of opposition on their behalf.

I will briefly relate to the initial interpleader affidavits filed by the claimants as they have a bearing on one of the preliminary points raised by counsel for the judgment creditor. The first claimant's affidavit was deposed to by Eviah Tachiona in her capacity as an agent and trustee of the said claimant. She claimed to be deposing to the affidavit based on the authority granted to her through a resolution of the first claimant's board of trustees passed on 27 June 2023. The said resolution was attached as an annexure to the deponent's affidavit. The resolution is worded as follows:

> "**RESOLUTION FOR NGEKU TRUST**
> After convening a meeting of the Board of Trustees on the 28th of June 2023, the following were made:
> 1) EVIAH TACHIONA has been duly appointed as the sole representative of NGEKU TRUST in all matters before the courts which NGEKU TRUST is a party to.
> Signed
> ……..
> (For BOARD OF TRUSTEES)" (Underlining mine for emphasis).

The same resolution was attached to the notice of opposition filed on behalf of the first claimant on 6 November 2024. The first claimant claimed ownership of the Blueberry Irrigation Plant and all fittings. It also claimed ownership of the 40 000 blueberry plants. Attached to its claim was what the claimant referred to as a government issued Certificate of Plant Breeders Rights, duly endorsed by the Registrar of Plant and Breeders Rights. According to the claimant, the certificate confirmed that the Plant Breeders Rights in respect of the Blueberry plants under attachment were wholly vested in the first claimant.

The first claimant also referred to a Plant Breeders Rights Assignment which was entered into by the first claimant and the Dwergie Investments Trust assigning all intellectual rights to the attached blueberry plant to them. Reference was made to an invoice which showed that the purchases of the equipment was paid for by an entity called United Exports which is a partner to the claimant, who ceded the equipment to the claimant.

The second claimant's opposing affidavit was deposed to by Moses Lunga in his capacity as the appointed agent. The second claimant claimed ownership and entitlement to the following property that was placed under attachment:

a. Peach sizing machine plant;
b. 100 stainless steel cables;
c. 4 marko digital scales;

d. 6 packing conveyor belts;
e. 18 cold room units;
f. Volvo 50 kv invertors.

To support its claim, the second claimant referred to some transactional receipts that it claimed all but proved its position as the purchaser of the property. The second claimant also claimed that its core business was the facilitation of leases of industrial scale agricultural processing plants to large scale commercial farmers such as the judgment debtors. Its business model was designed to enable farmers to enjoy greater capacity utilisation whilst the second claimant made profit from the lease of the equipment. The second claimant had not at any point sold its equipment to either of the judgment debtors. The equipment was just being leased by the judgment debtors.

The second claimant further averred that the equipment under attachment was utilsed in increasing productivity at the judgment debtor's farm. It was also clear from the attached annexures that the second claimant owned the property.

The third claimant's opposing affidavit was deposed to by Abraham Cambridge in his capacity as the appointed agent for the third claimant. The third claimant lay claim to the following property:

a. 10 High Voltage Solar Inverters;
b. Sixty four solar batteries of 48 volts;
c. 600 solar panels.

The third claimant attached a lease agreement between it and the first judgment debtor. In terms of the lease agreement, there was an arrangement for the first judgment debtor to lease a comprehensive heavy duty solar system from the third claimant for use at the said judgment debtor's farm. The third claimant retained ownership of the equipment.

The Judgment Creditor's Opposition to the First Claimant

The opposing affidavit raised as a preliminary point, the defectiveness of the first claimant's opposing affidavit. It was averred that the deponent deposed to an affidavit on behalf of a Trust called Ngepi. The resolution attached to the affidavit referred to a trust called Ngeku. These were two different entities and one would not know which trust was laying claim to the attached equipment.

In his oral submissions, Mr *Mahuni* for the judgment creditor insisted that the affidavit submitted on behalf of the claimant was defective because the Trust before the court was Ngepi and not Ngeku. For as long as that anomaly was not redressed, then there was no proper claim before the court. The validity of the resolution had been challenged but had not been regularised. The claimant had not addressed the point in its own notice of opposition. That which was not disputed must be taken to have been admitted.

Mr *Chirambwe* for the claimants downplayed the anomaly arguing that it was an insignificant irregularity which was excusable. He further submitted that the attached documents clearly showed that the entity laying claim to the attached equipment was Ngepi and not Ngeku. The person authorised to depose to the affidavit under the resolution was Eviah Tachiona who went on to depose and sign the affidavit on behalf of the first claimant. Mr *Chirambwe* further submitted that the inelegant drafting of the resolution was not enough to invalidate the entire cause.

There is merit in Mr *Mahuni's* submission. As I noted in the background above, the first claimant filed two opposing affidavits, to which it attached the same defective resolution. This anomaly had been pointed out by the judgment creditor in the first notice of opposition to the claim. It was not regularised. It was again raised in the judgment creditor's supplementary affidavit before the matter was argued. Still no attempt was made to regularise the anomaly. Mr *Chirambwe* was at pains to explain why the defect was not regularised if at all Ngepi Trust indeed existed. The first claimant had been forewarned and all it needed to do was to place a proper resolution before the court.

The court therefore agrees with the judgment creditor's submission that there is no resolution before the court authorising Eviah Tachiona to depose to that affidavit on behalf of the first claimant. Eviah Tachiona failed to demonstrate that she was authorised to depose to the opposing affidavit on behalf of the first claimant. The first claimant's claim is not properly before the court and it stands to be struck out.

The Judgment Creditor's Opposition to the Second Claimant

The second claimant's interpleader affidavit was filed by the same party as a self actor. The resolution accompanying the opposing affidavit reads as follows:

> "**RESOLUTION FOR NGEKU TRUST**
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> After convening a meeting of the Board of directors of Rollex (Pvt) Ltd on the 28th of June 2023, the following resolutions were made:

1] **MOSES LUNGA** has been duly appointed as the sole representative of Rolex (Pvt) Ltd in all matters before the courts.

Signed

…….
(For BOARD OF DIRECTORS)"

As can be gleaned from its heading, the resolution purports to be one for Ngeku Trust. The body of the resolution refers to the convening of a meeting of the Board of directors of Rollex (Pvt) Ltd.

In its first notice of opposition to the second claimant's interpleader affidavit, the judgment creditor pointed out this defect. It submitted that the resolution that the second claimant was relying on was one for Ngeku Trust, which was not even before the court. For that reason, it was contended that there was no resolution authorising Moses Lunga to depose to the affidavit on behalf of the second claimant. The same error was repeated in the notice of opposition filed by the second claimant after the matter was postponed to enable the claimants to file proper notices of opposition that comply with the rules. This time the second claimant attached the same resolution as the one attached on behalf of the first claimant. That resolution, as already observed, was defective because it referred to Ngeku Trust. That entity is not before the court. Further, even assuming the resolution referred to Ngepi, it authorised Eviah Tachiona to depose to the affidavit on behalf of the first claimant and not the second claimant.

No meaningful submissions were made on behalf of the second claimant to explain this apparent fatal defect. There is no resolution authorising Moses Lunga to depose to the second claimant's affidavit. Despite being forewarned in the first notice of opposition to its interpleader affidavit, the second claimant went on to repeat the same mistake even when the opportunity to regularise the anomaly was availed to it. This level of inattention to detail borders on recklessness and is inexcusable. In the absence of a proper resolution authorising the deponent to depose to the second claimant's affidavit, then it follows that the affidavit placed before the court is irregular. This entails that there is no valid claim before the court. The purported claim must therefore be struck out.

The Judgment Creditor's Opposition to the Third Respondent's Claim

The resolution accompanying the third claimant's first interpleader affidavit was couched as follows:

> **"RESOLUTION FOR SUN EXCHANGE PVT LTD**
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> After covening a meeting of the Board of trustees on the 28th of June 2023, the following resolutions were made.
>
> **1] ABRAHAM CAMBRIDGE** has been duly appointed as the sole representative of **NGEKU TRUST** in all matters before the courts which **SUN EXCHANGE PVT LTD** is a party to.
>
> Signed
>
> ……..
> **(FOR BOARD OF DIRECTORS)**" (Underlining mine for emphasis)

In its first opposing affidavit to the interpleader affidavit, the judgment creditor also pointed to the irregularity of the deponent relying on a resolution that authorised him to represent Ngeku Trust and not the third claimant. The judgment creditor averred that there was therefore no resolution authorising the deponent to depose to the affidavit and represent the third claimant. In the second notice of opposition filed on behalf of the third respondent after the postponement of the matter to allow for the filing of affidavits that complied with the rules, the same resolution as the one above was filed on behalf of the third claimant.

In its supplementary opposing affidavit, the judgment creditor again pointed to the fallacy of attaching a resolution that authorised the deponent to represent Ngeku Trust and not the third claimant. It submitted that there was therefore no resolution authorising the deponent to depose to the affidavit and to represent the third claimant in these proceedings.

There is merit in the judgment creditor's submission. The resolution attached to the third claimant's affidavits does not authorise the deponent to represent the third applicant. The attached resolution authorises the deponent to represent Ngeku Trust and not the third claimant. There is therefore no proper claim before the court in the absence of a valid affidavit. The purported claim must therefore be struck out.

Costs

The court was requested to dismiss the claimants' claims with costs on the attorney and client scale because of the claimants' dishonesty and attempts to mislead the court. That

submission is not off the mark. The manner in which the claimants sought to advance their cause bears all the hallmarks of a contrived adventure which deserves censure befitting such level of impertinence. While the court did not determine the claims on the merits, owing to the defective affidavits that were placed before the court on behalf of the claimants, it is the claimants' failure to remedy the defects that were brought to their attention, that leaves one justified in concluding that the claims were bogus. If indeed the claims were genuine, there is no reason why no attempt was made to regularise the flawed resolutions and placing proper affidavits before the court.

Resultantly, it is ordered that:

1. The first, second and third claimants' claims are hereby struck out for having been irregularly made.
2. The first, second and third claimants shall pay the judgment creditor's costs of suit on the legal practitioner and client scale.
3. The first, second and third claimants shall pay the applicant's costs of suit on the ordinary scale.

V. Nyemba & Associates, legal practitioners for the applicant
Marufu-Misi Law Chambers, legal practitioners for the claimants
Scanlen & Holderness, legal practitioners for the judgment creditor